Adobe Systems Pty Ltd
ABN 72 054 247 835

GPO Box 5368
Sydney, NSW, 2001
Tower 2, Level 27
201 Sussex Street
Sydney, NSW 2000
Australia

Tel: 61 2 9778 4100
Fax: 61 2 9778 4190

{{Dte_es_:signer1:date}}

PRIVATE & CONFIDENTIAL

Abhishek Dixit
{{Em_es_:signer1:email}}

Dear Abhishek Dixit,

On behalf of Adobe Systems Pty Ltd, I am pleased to offer you employment on the terms and conditions set out below.

This offer and continued employment with Adobe are conditional upon:

1. (if applicable) you obtaining and retaining all necessary visas, work permits, licences, registrations, or memberships to enable you to lawfully reside and work in Australia;
2. you completing your degree and obtaining the relevant proof of graduation from your university and submitting a copy of the completion/graduation certificate to Adobe prior to the Commencement Date; and
3. successful completion of a background and reference check (which may include a criminal record check) to the satisfaction of Adobe as well as any necessary legal or regulatory approvals including export control requirements; (collectively, the "Approvals").

In the event that the result of the background and reference check is not to Adobe's satisfaction or the Approvals are not obtained, for any reason, this agreement will be deemed null and void (with no obligation owed by either party). In such a case, your employment will terminate with immediate effect, without any notice or compensation due to you.

You warrant that by joining Adobe you are not in breach of any contractual obligations binding upon you by virtue of any previous employment.

This offer and continued employment with Adobe are conditional upon you obtaining and retaining all necessary visas, work permits, licences, registrations, or memberships to enable you to lawfully reside and work in Australia.

Employment with Adobe is contingent upon the successful completion of a background and reference check (which may include a criminal record check) to the satisfaction of Adobe as well as any necessary legal or regulatory approvals including export control requirements ("Approvals"). In the event that the result of the background and reference check is not to Adobe's satisfaction or the

Approvals are not obtained, for any reason, this agreement will be deemed null and void (with no obligation owed by either party).

1. **Employer**

Your employer will be Adobe Systems Pty Ltd ("**Adobe**").

2. **Commencement**

Unless agreed otherwise and subject to the terms and conditions set out in this agreement, your employment with Adobe in the Position will commence on **2023-02-14**.

3. **Position**

You will be employed in the position of **Technical Architect** or such other positions as subsequently agreed between the parties ("**the Position**"). You will report to **Director** or such other person nominated by Adobe from time to time.

4. **Duties**

During your employment you must:

(a) perform your duties (as may be assigned to you from time to time) faithfully and diligently and to the best of your abilities;

(b) devote the whole of your time, attention and skill during normal business hours and at other times as is reasonably necessary, to your position and act in the best interests of Adobe;

(c) not engage in any other employment or activity, in the absence of prior written approval from Adobe (which may be withheld by Adobe at its sole discretion); and

(d) comply with all Adobe policies and lawful directions given to you from time to time.

You represent and warrant that:

(a) by accepting your employment with Adobe, you will not be in breach of any express or implied terms of any contract or other obligation binding on you; and

(b) all information supplied by you as to background, employment history, work experience and right to work in Australia are correct, accurate and not misleading, with no material omissions.

If at any time during the employment the representations and warranties above are not fulfilled, the employment may be terminated without notice, payment in lieu of notice or any other compensation thereof.

5. **Location of Employment**

Your role is assigned to the Sydney Adobe office location. This offer is contingent on you living and working within the same state/prefecture as your assigned Adobe Sydney location. Please note that if you must relocate to be in your new worksite location, you are encouraged to move before you join Adobe. In any event, you are required to be in your assigned location within 60 days of the

Commencement Date. You also cannot start working for Adobe outside of your assigned country location. If you are unable or unwilling to work in and/or relocate to your assigned worksite location, please discuss with your manager and inform the Employee Resource Center (erc@adobe.com) immediately for further assessment as this could result in a compensation adjustment, a change in benefits, and/or separation from employment.

Please note that during any period in which your home and work locations are in two different states, cantons, provinces, or territories, it may result in being taxed in two locations depending on the rules for each location and in combination. Your AIP (if applicable) & Equity taxation will be based on your home and work locations at time of pay out for AIP (if applicable) and Equity vesting.

You will be working remotely from your home office in Sydney on a full-time basis. You will be required to sign the Remote Working Agreement which will be sent to you separately, prior to the Commencement Date.

While working remotely, you must also comply with the terms of the Remote Working Agreement, Adobe's Remote Working Policy and all other remote work guidelines that may be introduced from time to time. You continue to be subject to and must abide by all Adobe policies, including but not limited to, Adobe's Code of Conduct, Harassment and Discrimination Prevention Policies, any applicable overtime-eligible policies in your region (if applicable), all IT, Security and Privacy Policies and Standards (including without limitation, the Employee Privacy Policy, the Electronic Communications Policy, Information Systems Asset Management Policy, Data Classification & Handling Standard, Security Monitoring Standard, Bring Your Own Device Standard, Remote Access Standard and Vendor Information Security Standard).

Adobe's approval of a remote work arrangement is within its sole discretion. Adobe may change any of the terms and conditions of this remote work arrangement, or terminate the arrangement at any time, for any reason with or without notice. If so, you will be required to return to work at Adobe's office location within the required timeline, or your employment with Adobe may be subject to termination to the extent permitted by law.

6. **Hours of Work**

You are engaged on a full-time basis.

Your normal hours of work will be 38 per week plus reasonable additional hours. You may be required from time to time to work beyond these normal hours of work to properly complete your duties. You agree that these hours of work are reasonable having regard to the nature of the Position. You also agree that you are available to work these hours.

Adobe may also change your normal working hours from time to time in consultation with you.

Your remuneration package includes payment for all hours worked. You will not be entitled to any additional payment in respect of overtime, unless otherwise required by law.

7. **Probation Period**

The first six (6) months of your employment will be a probation period ("**Probation Period**"). During the Probation Period, Adobe will assess your suitability for the Position. Your employment may be terminated for any reason and at any time within the Probation Period by Adobe giving one weeks' notice in writing, or making a payment of one week's base salary in lieu of notice.

8. **Remuneration**

8.1 Base Salary

Your annual base salary for the Position will be AUD 2000. The Base Salary will be paid in 12 equal instalments on a monthly basis into a bank account nominated by you in accordance with Adobe's pay cycle. Adobe reserves the right to alter the pay period.

8.2 **Benefits**

a) Annual Incentive Plan (AIP) Bonus

You will also be eligible to participate in Adobe's Annual Incentive Plan ("AIP"). Your target bonus percentage under the AIP is 10000% of your annual base salary per year, subject to the terms and conditions of the applicable AIP. Employees hired before October 1st will be eligible to participate in the AIP and earn a prorated bonus for the remainder of any ongoing AIP period, subject to the terms and conditions of the applicable Plan. Employees who join on or after October 1st will be eligible to participate in any AIP Plan beginning with the next fiscal year. A copy of the current year AIP is posted on the company intranet site

b) New Hire Guarantee

As a new participant in the Plan, you will be guaranteed 50% of your variable target commission for the first three fiscal months after the Commencement Date. You will also be paid any commissions that you earn in addition to your guaranteed commission amount as per your Plan. Details regarding the terms and conditions of this guarantee, as well as additional terms and conditions regarding commissions, may be found in your Plan for the applicable fiscal year. Payments are calculated based on the Adobe fiscal months, and prorations will be based on the actual days worked.

c) Sign-on Bonus

Should you accept this employment offer and join Adobe, you will receive a sign-on bonus of AUD [INSERT AMOUNT] (less appropriate withholding taxes), payable on the next available payroll after your actual start date, i.e., the date on which you report in the position set out above. You must reimburse Adobe this amount, prorated for each full month worked after your actual start date, i.e., the date on which you report in the position set out above, should you voluntarily terminate your employment or if your employment is terminated for cause within the first year of employment. You authorise Adobe to deduct from your final paycheck any sign-on bonus balance due and payable to Adobe.

a) Other Discretionary Bonuses

Adobe may, in its sole discretion, elect to pay to you variable, additional and non-recurrent bonuses, recognition and reward payments, and/or other incentive payments (collectively, "**Discretionary Bonuses**"). Any Discretionary Bonuses are at the absolute discretion of Adobe, do not form part of your remuneration, and do not form part of your contract of employment or give rise to contractual rights or entitlements. Adobe reserves the right to unilaterally amend or discontinue any Discretionary Bonuses at any time.

b) Superannuation

Adobe will also make superannuation contributions on your behalf into a complying superannuation fund in accordance with Choice of Superannuation legislation. The amount of superannuation will be the minimum required for Adobe to avoid the Superannuation Guarantee Charge as set out in the *Superannuation Guarantee (Administration) Act* 1992 (Cth).

c) Other Discretionary Benefits

You may be entitled to other Adobe benefits such as medical insurance, salary continuance insurance and the ability to participate in Adobe's employee stock purchase plan. Details of these benefits are set out in the Benefit Summary. Adobe retains the right to review and vary these benefits from time to time.

9. Expenses

Adobe will reimburse you for all reasonable business expenses properly incurred by you in the course of the performance of your duties. Any reimbursement is conditional upon the presentation of expense statements, receipts or other supporting documentation that Adobe may reasonably require. A request for an expense reimbursement may be denied if it is not accompanied by the required documentation.

10. Annual Leave

You will accrue and take paid annual leave in accordance with the *Fair Work Act 2009* (Cth).

11. Leave Benefits

You will be granted paid annual leave and other types of leaves, details of which are set out in the Benefits Website/Summary. Adobe retains the right to review and vary these benefits from time to time.

12. Terminating your Employment with Notice

Either you or Adobe may terminate your employment by giving to the other the following prior notice, or in the case of Adobe, paying your base salary in lieu of the required notice:

(a) 4 weeks' prior notice; or

(b) 5 weeks' prior notice if you have had at least 5 years' continuous service with Adobe.

During the period of notice provided Adobe may, at its discretion, require you:

(a) not to attend for work at any offices or premises of Adobe;

(b) not to perform the duties of the Position;

(c) to perform duties which are different to your usual duties, provided that you have the necessary skills and competencies to perform these duties;

(d) to assist Adobe with a proper hand over of the duties of the Position including business information, work, customers, and business;

(e) to take any accrued but untaken period of leave to which you are entitled;

(f) not to have any dealings with any customers, suppliers or clients of Adobe or any Adobe's related bodies corporate (as defined in the Corporations Act 2001 (Cth)) (Related Bodies Corporate); and/or

(g) to do any combination of the above.

13. **Terminating your Employment without Notice**

Adobe may terminate your employment at any time without prior notice if you engage in serious misconduct, including but not limited to:

(a) committing any serious or persistent breach of this agreement or any of Adobe's or Group policies and procedures;

(b) committing any act of dishonesty, fraud, falsification of documentation, or other misconduct;

(c) neglecting, failing or refusing to carry out lawful instructions of Adobe;

(d) material breach of Adobe's or Group policy or procedure;

(e) being intoxicated or under the influence of drugs at work;

(f) committing a material failure to properly protect Adobe's assets;

(g) being charged with a criminal offence which is likely to adversely affect Adobe's reputation;

(h) acting in a manner (whether in the course of your duties or otherwise) which does or, in Adobe's reasonable opinion, is likely to bring you or Adobe into serious disrepute;

(i) failing to provide sufficient information to allow a national police check to be undertaken and/or any such police check is unsatisfactory in Adobe's reasonable opinion;

(j) committing any act of bankruptcy or compounds with creditors;

(k) being precluded by the *Corporations Act 2001* (Cth) from taking part in the management of a corporation, or is disqualified from holding office as a director of any company by virtue of any legislation;

(l) gross negligence in the performance of your duties; or

(m) engaging in wilful or negligent conduct which poses a serious risk to health and safety.

14. **On termination**

If your employment is terminated for any reason:

(a) Adobe may set off any amounts you owe Adobe against any amounts Adobe owes you, except for amounts Adobe is not permitted by law to set off;

(b) you shall, upon the request of Adobe, resign without claims for compensation from office as director of Adobe and from all offices held by you in Adobe and in the event of the failure to do so, Adobe is hereby irrevocably authorised to appoint such person in your name and on your behalf to execute any documents and to do all things requisite to same effect thereto;

(c) you must return all Adobe's property (including property leased by Adobe) to Adobe on termination including all written or machine-readable material, software, documents, computers, credit cards, keys and vehicles if Adobe owned or leased; and

(d) you must not take, delete, alter, record, copy, summarise or disclose to any third party any Confidential Information (as defined later in this agreement) in any form after termination. You must return all Confidential Information to Adobe upon termination and, if required, confirm in writing that you do not retain any such information or copies thereof.

15. Suspension

If Adobe suspects that you have been involved in any improper conduct or involved in any other conduct which in the opinion of Adobe may impact upon your ability to carry out your duties and responsibilities under this agreement or may cause damage to Adobe's business or reputation, Adobe may do the following:

(a) suspend you from performing the duties and responsibilities of the Position for a period determined by Adobe;

(b) direct you not to attend the workplace, communicate with fellow employees, customers, suppliers or clients of Adobe or any other persons involved in the conduct which is being investigated, or otherwise interfere with the conduct of the investigation; and/or

(c) appoint any person to conduct an investigation; and direct you to provide any assistance and answer any questions required for the investigation.

During the period of suspension you will continue to receive your base salary.

16. Policies and Procedures

Written policies pertaining to your conduct and other details regarding your employment are available on Adobe's internal employee website (InsideAdobe.com), including, without limitation, the Code of Business Conduct, Electronic Communications Policy, Worker Data Privacy Policy, Foreign Corrupt Practices Act and Certain Business Practices Policy, Remote Access and Telecommunications Usage Policy, and the Employee Handbook. You must acquaint yourself with these policies and comply with them at all times.

Unless otherwise expressly stated in an Adobe policy or this agreement, any policies or procedures issued by Adobe will not form part of your employment contract with Adobe and are not binding on Adobe, and do not give rise to any contractual rights or entitlements. To the extent that a policy or procedure of Adobe requires you to do or refrain from doing something, it constitutes a direction from Adobe with which you must comply

Adobe may amend its policies at any time. You must ensure that you regularly familiarise yourself with any changes from time to time.

17. **Privacy & Surveillance**

Adobe may collect personal and sensitive information from you from time to time, such as banking details, and health information. You consent to Adobe providing this information to third party providers, inside or outside Australia, including, but not limited to its payroll provider, workers compensation insurers and other third parties where it is necessary for the proper conduct and administration of Adobe's business. You acknowledge that Adobe retains the right to select its third-party contractors.

From the commencement of your employment, on an ongoing basis, your computer use, including your internet and email use, will be subject to continuous monitoring through the use of software, in accordance with Employer policy.

From the commencement of your employment, on an ongoing basis, you may be subject to camera surveillance through visible cameras while you are on Adobe's premises.

18. **Confidential Information**

By virtue of your employment, you will become aware of and/or have access to information, however communicated or recorded, relating to the business or affairs of Adobe or its Related Bodies Corporate, including, but not limited to its customer lists, trade secrets, customer details, sales and marketing information, financial data, product information, human resources data, intellectual property and financial information between Adobe and/or its Related Bodies Corporate and/or its customers ("**Confidential Information**").

The Confidential Information remains the sole property of Adobe and/or its Related Bodies Corporate.

You must not, either during (except in the proper course of your duties) or after the termination of your employment, without the prior written consent of Adobe, directly or indirectly, divulge, use or otherwise disclose to any person whatsoever, the Confidential Information, either for your own or for another's benefit or for any other reason.

You must not, during your employment or thereafter, make a copy or other record of Confidential Information except in the proper performance of your duties.

You must, during your employment and thereafter, maintain effective security measures to protect all Confidential Information from unauthorised access, use, copying or disclosure.

You must, during your employment and thereafter, immediately notify Adobe should you suspect disclosure or misuse of the Confidential Information and assist Adobe in any proceedings taken by Adobe for alleged misuse of the Confidential Information.

You must, during the employment and thereafter, enter into any other confidentiality agreement as required by Adobe from time to time to protect its business interests.

You must, at any time on the request of Adobe, deliver to Adobe all documents or other things in your possession, custody or control and on which any Confidential Information is stored or recorded, whether in writing or in electronic or other form, and certify that you have done so. If requested by Adobe, instead of delivering the Confidential Information to Adobe, you must permanently destroy the Confidential Information to the satisfaction of Adobe and certify that you have done so.

If there is any uncertainty as to whether any information is Confidential Information, that information must be treated as Confidential Information unless you are advised by Adobe in writing to the contrary.

You acknowledge and agree that this clause and your obligations as set out in Schedule A to this agreement survive termination of your employment and will be enforceable at any time at law or in equity and will continue to the benefit of, and be enforceable by, Adobe.

19. **Governing Law**

This agreement and your employment will be governed by the laws of Sydney. The parties agree to submit to the jurisdiction of the courts in Sydney with respect to the adjudication of any dispute arising hereunder.

This agreement and your employment will be governed by the laws of Sydney. The parties agree to submit to the jurisdiction of the courts in Sydney with respect to the adjudication of any dispute arising hereunder.

20. **Acknowledgment**

If the terms and conditions of this agreement are acceptable to you, please confirm your acceptance by signing and returning the enclosed copy of this agreement to Adobe within seven days from the date of this agreement. A copy of the Fair Work Statement can be found here.

By signing this agreement, you are acknowledging that:

(a) you have had sufficient time to review its contents;

(b) you have been given an opportunity to obtain advice concerning its contents and effect;

(c) you have read and understand the contents of this agreement and your obligations;

(d) this agreement contains or provides for all of the terms and conditions of your employment and supersedes, replaces and extinguishes all previous contracts, agreements, arrangements, negotiations, understandings, representations, warranties, memoranda, promises and commitments between you and Adobe (whether written, oral or governed by a course of dealings) and you acknowledge and warrant that you are not relying on any such contracts, agreements, arrangements, negotiations, understandings, representations, warranties, memoranda, promises or commitments (whether negligently or innocently) made in entering into this agreement which are not expressly set out herein;

(e) any legislation or relevant industrial instrument applies to your employment as a matter of law and does not form part of this agreement; and

(f) any compensation or benefit that you receive from Adobe, during your employment, which exceeds an entitlement under a statute or industrial instrument can be set off against a claim for another entitlement.

21. **Execution of this Agreement.**

You agree and acknowledge that Adobe (through its authorised representative) and you may sign this agreement using an electronic signature or handwritten ink signature to indicate Adobe's and your acceptance of the terms and conditions of this agreement.

Abhishek, we feel you will be an important contributor to Adobe's continued success and we look forward to having you join Adobe. Please keep the contents of this offer confidential.

Yours sincerely,

AD

AD (Feb 28, 2023 21:41 GMT+5.5)

Allen Russell

Authorised Signatory
For and on behalf of Adobe Systems Pty Ltd

Employee Acceptance

I, Abhishek, hereby confirm acceptance of all of the above terms and conditions. I understand that I am also required to sign the documents listed below before starting employment with Adobe:

- Employee Inventions and Proprietary Rights Assignment Agreement;
- Employee Remote Access Agreement;
- Employee Privacy and Consent Notice;
- Employee Onboarding Certificate; and
- Any other agreements or documents that Adobe may require in relation to the use and transfer of my personal data.

Abhishek Dixit
Abhishek Dixit (Feb 28, 2023 21:42 GMT+5.5)

Signature of Abhishek Dixit

Date Feb 28, 2023

SCHEDULE A

1. **Definitions**

For the purpose of this Schedule A, the following definitions apply:

"Confidential Information" has the meaning set out in the agreement to which this Schedule is attached.

"**Customer**" means any person, partnership or entity who at any time within the Relevant Period was:

(a) negotiating with Adobe and/or its Related Bodies Corporate for the supply of goods or services by Adobe;

(b) a client or customer of Adobe and/or its Related Bodies Corporate; or

and with whom you dealt or had contact in the course of your employment within the Relevant Period or about whom you had access to Confidential Information as a result of your employment.

"**Competing Business**" means a business that manufactures or supplies or proposes to manufacture or supply goods or services that are competitive with the goods or services manufactured or supplied by Adobe and/or its Related Bodies Corporate.

"Personnel" means any employee or independent contractor of Adobe and/or its Related Bodies Corporate:

(a) who at any time within the Relevant Period had dealings with Customers and/or Suppliers, or access to Confidential Information; and

(b) with whom you dealt or had contact in the course of your employment within the Relevant Period or about whom you had access to Confidential Information.

"Relevant Period" means the period of 12 months immediately preceding the Termination Date.

"**Restraint Period**" means a period of six (6) months from the date upon which your employment ceases (for any reason).

"Supplier" means any person, partnership or entity who at any time within the Relevant Period:

(a) supplied Adobe and/or its Related Bodies Corporate with goods and/or services; or

(b) was having discussions with Adobe and/or its Related Bodies Corporate regarding becoming a supplier of the goods or services; and

(c) with whom you dealt or had contact in the course of your employment within the Relevant Period or about whom you had access to Confidential Information as a result of your employment.

"**Termination Date**" means the date upon which your employment ceases, regardless of the reasons or manner of such cessation.

2. **Restrictions**

You undertake to Adobe that, during the Restraint Period, you will not, without the prior written consent of Adobe, directly or indirectly, whether alone or in conjunction with, or on behalf of, any other person and whether as principal, shareholder, director, employer, employee, agent, contractor, consultant or partner or in any other capacity:

(a) canvass, solicit or approach for business, or cause to be canvassed, solicited or approached for business, any Customer or Supplier for the benefit of a Competing Business;

(b) interfere with the business relationship which Adobe and/or its Related Bodies Corporate maintains with any Customer, Personnel or Supplier;

(c) entice, or endeavour to entice away from Adobe and/or its Related Bodies Corporate, any Customer, Personnel or Supplier;

(d) become employed by, or provide services to, or have any other business association with a Competing Business; or

(e) counsel, procure, or assist any person to do any of the acts referred to above.

Each covenant and undertaking contained in this Schedule shall be read and construed independently of the other covenants and undertakings in this Schedule.

The parties intend the covenants and undertakings contained in this Schedule to operate to their maximum extent. If one or more of the covenants or undertakings are held to be invalid, then the remaining covenants and undertakings shall be read as if those invalid covenants and undertakings were deleted.

You acknowledge that the covenants and undertakings in this Schedule are reasonable in scope and duration and necessary for the protection of the Confidential Information, goodwill and legitimate business interests of Adobe and/or its Related Bodies Corporate.